

TENTATIVE RULING

Aleksander Kopelevitch v. Chartwell School (26CV001562)

Defendant Chartwell School's Motion to Compel Arbitration and Stay Action

Defendant Chartwell moves for an order compelling arbitration of the claims asserted by Plaintiff Aleksander Kopelevitch. Mr. Kopelevitch is a former employee of Chartwell. He filed the present lawsuit asserting employment-related claims against Chartwell and its former Head of School Danielle Patterson. Mr. Kopelevitch opposed the motion on the basis that Chartwell waived its right to arbitration. Chartwell denies that it waived the right to arbitration.

The Motion is **CONTINUED** to Friday, March 19, 2027, to allow the parties to mediate. The case is stayed during the period of continuance. If mediation is completed, and the arbitration motion is not withdrawn, the court will rule on the motion at that time.

The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense. (See *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Chartwell has shown the existence of an arbitration agreement, which Mr. Kopelevitch does not dispute that he signed. The burden therefore shifted to Mr. Kopelevitch to show a defense to the agreement.

Mr. Kopelevitch has shown that mediation is a condition precedent to the parties' agreement to arbitrate per the plain terms of the agreement:

In the event that Chartwell School and Employee are unable to resolve their dispute, and should either desire to pursue a claim against the other party, both Chartwell School and Employee agree to make a good faith effort to resolve the controversy or dispute through non-binding mediation before a neutral mediator. If such mediation is unsuccessful, the School and Employee agree to have the dispute resolved by final and binding arbitration pursuant to, governed by, and in accordance with, the provisions of Title 9 of the California Code of Civil Procedure, and such dispute shall not be the subject of Court action except as provided by California law for judicial review of arbitration proceedings. THE PARTIES UNDERSTAND THAT THEY ARE WAIVING THEIR RIGHT TO A COURT OR JURY TRIAL, AND AGREE THAT THE ARBITRATOR'S AWARD SHALL BE FINAL AND BINDING ON THE PARTIES.

Mr. Kopelevitch contends that Chartwell waived its right to arbitration because Chartwell was initially silent when Plaintiff offered to mediate, and Chartwell was then unwilling to mediate unless Plaintiff contemporaneously stipulated to arbitration. Waiver is hard to establish and depends on the waiving party's intent:

To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it. Under the clear and convincing evidence standard, the proponent of a fact must show that it is "highly probable" the fact is true. The waiving party's knowledge of the right may

be “actual or constructive.” Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it.

The waiver inquiry is exclusively focused on the waiving party’s words or conduct; neither the effect of that conduct on the party seeking to avoid enforcement of the contractual right nor that party’s subjective evaluation of the waiving party’s intent is relevant. This distinguishes waiver from the related defense of estoppel, “which generally requires a showing that a party’s words or acts have induced detrimental reliance by the opposing party.”

(*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584–585 [internal citations and note omitted].)

Mr. Kopelevitch has not established waiver here because Chartwell’s conduct does not show an unambiguous intent to waive the right to arbitrate. However, Chartwell has not yet performed a condition precedent to arbitration. If Chartwell performs, no waiver will be established. If Chartwell does not perform, there may be a waiver of the right to arbitrate.

Mr. Kopelevitch separately argues that claims against defendant Danielle Patterson, Chartwell’s former Head of School, are not arbitrable because Ms. Patterson did not sign the arbitration agreement. It is undisputed that at all relevant times Ms. Patterson was an employee of Chartwell, and Mr. Kopelevitch’s claims against her arise from that employment. Pursuant to the terms of the arbitration agreement, Mr. Kopelevitch agreed to arbitrate all employment-related claims against Chartwell employees, as well as against Chartwell. Under California law, if an arbitration clause encompasses claims against a contracting party’s employees or associates, those persons may compel arbitration of claims against them. (See *Gravillis v. Coldwell Banker Residential Brokerage Co.* (2006) 143 Cal.App.4th 761, 772; *Michaelis v. Schori* (1993) 20 Cal.App.4th 133, 139; *Grand Wireless, Inc. v. Verizon Wireless, Inc.* (1st Cir. 2014) 748 F3d 1, 9-13.) Accordingly, the Motion is continued as to Ms. Patterson as well to give the parties time to complete mediation.

The ORDER TO SHOW CAUSE against the defendants is discharged.

Defendants are to prepare the court’s order consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court’s order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT

WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.